

To
The Executive Officer
Cantonment Board Office
Nasirabad (Rajasthan)

Sub:-Notice under section 5A (2) PP Act 1971
Ref:-Your No.87 dated 3.12.1999

Sir,

1. This reminder is submitted requesting to drop action under PP act in reference to above notice regarding my HN 533 & 532 considering the following facts.

House No.	GLR Survey No.	Land Area	Land Classification	House Tax
533	280/752	1120 sft	B (3) Old Grant	Paid Up To March 2006
532	280/751	405 sft	B (3) Old Grant	Paid Up To March 2006

HN.533 & 532 are situated on class B (3) old grant land in Ramdayal mohalla Nasirabad, and their cumulative area 1525sft is bound at site as under (plan attached).

On the North by:--Gully
On the South by:--Road
On the East by:--H.N. 534
On the West by:--Rasta

2. Encroachment measuring 701sft shown on old grant B (3) land HN 533&532 vide PP act.

Overseer has pointed out encroachment on some land of HN 533 and on entire land of HN 532 in above notice under PP act which is absolutely wrong explained hereunder that:

- (i) Chabutra measuring 296sft part of HN 533 (it's specified gross land area 1120sft).
- (ii) Adjoining building site 405sft of HN 532 measuring fully specified gross land area.
- (iii) Overseer thus reported 701sft land of both houses as encroachment under PP act.

701sft land area shown as encroachment is wrong because it is not govt. land but it is the integral part of land of HN 533 & 532 otherwise land of both houses will fall shorter than specified areas in GLR.

3 HN. 532 & 533 have gross land 405sft and 1120sft classified B (3) old grant in GLR since origin. The executive officer has charged house tax of both houses since origin by demand notices. Photo copies of tax receipts already submitted are proof. Action under PP act is therefore quite unjustified and surprising. HN.532 deteriorated several decades ago being kutcha as such building site exhibits now since long.

4 Overseer mentioned survey number of 701sft encroached portion as 280/4485(pt) in above notice. But HN 532 & 533 possess GLR survey numbers as 280/751 & 280/752 old grant B (3) land with gross areas specified 405sft & 1120sft respectively.

5 Only Public Rasta, gully, road and HN 534 exhibit around HN 532 & 533 and none other govt. land.